

From: Forrest, Yemisi

Sent: Monday, November 24, 2025 2:11 PM

To:

Cc: Regen, Licensing <Licensing.Regen@southwark.gov.uk>; Jerrom, Charlie; Tear, Jayne

Subject: New Premises Application, Flavr Street Food and Bar, Arch 37 America Street, London SE1 0NJ - Ref:887519

Trading Standards as a responsible authority are in receipt of a new premises licence application from America Street Ltd t/a Flavr Street Food and Bar in respect of a premises at Arch 37 America Street, London SE1 0NJ. Trading Standards as a responsible authority are making representation in respect of this application under all the licensing objectives, but primarily the protection of children from harm

In the general description this is:-

“The premises is a food hall and bar situated within one of the railway arches on America Street. The immediate area is predominantly commercial, with little to no residential property nearby, which significantly reduces the potential for noise or public nuisance. The venue is located within an established hospitality zone and forms part of the wider Bankside development. Its close proximity to Flat Iron Square and the adjoining arches—many of which already accommodate restaurants and licensed premises—means the proposed operation will be compatible with the existing character and late-evening activity of the locality. In addition to supporting the local night-time economy, the food hall will also provide a high-quality and affordable lunchtime option for the large number of office workers based in the surrounding area, contributing positively to both daytime and evening use of the site”.

The opening hours are to be:-

Monday	11:00 to 23:00
Tuesday	11:00 to 23:00
Wednesday	11:00 to 23:00
Thursday	11:00 to 01:00
Friday	11:00 to 01:00
Saturday	11:00 to 01:00
Sunday	11:00 to 23:00

The opening hours for alcohol sales are to be:- (on sales)

Monday	11:00 to 23:00
Tuesday	11:00 to 23:00
Wednesday	11:00 to 23:00
Thursday	11:00 to 01:00

Friday	11:00 to 01:00
Saturday	11:00 to 01:00
Sunday	11:00 to 23:00

The hours for late night refreshment are to be:-

Thursday	23:00 to 01:00
Friday	23:00 to 01:00
Saturday	23:00 to 01:00

Entertainment similar to live/recorded music - indoors

Monday	16:00 to 23:00
Tuesday	16:00 to 23:00
Wednesday	16:00 to 23:00
Thursday	16:00 to 01:00
Friday	16:00 to 01:00
Saturday	12:00 to 01:00
Sunday	12:00 to 23:00

Recorded music - indoors

Monday	16:00 to 23:00
Tuesday	16:00 to 23:00
Wednesday	16:00 to 23:00
Thursday	16:00 to 01:00
Friday	16:00 to 01:00
Saturday	12:00 to 01:00
Sunday	12:00 to 23:00

It is noted that the application states the following under licensing objective M (a) General

“The premises will actively promote the four licensing objectives by ensuring responsible alcohol service with staff trained to check ID and refuse service where appropriate.....”

It is also noted that the application states the following under licensing objective M (e) the protection of children from harm.

“No adult entertainment or age-restricted activities will be provided. Children will only be allowed on the premises when accompanied by an adult. Staff will be trained to prevent underage drinking and ensure that children are not exposed to alcohol-focused activity”.

Trading Standards as a responsible authority ask that the applicant include the following conditions in order to fully comply with the licensing objective the protection of children from harm and to also have a suitable age verification system in place, Challenge 25 is the industry standard.

4AA - The premises shall operate an age check 'Challenge 25' policy whereby customers purchasing alcohol who look or appear to be under 25 years of age will be asked for an approved form of proof of age to verify their age. Approved forms shall include a driving licence, passport or a PASS approved proof of age card such as the Southwark Proof of Age (SPA) card.

4AB - All staff involved in the sale of alcohol shall be trained in the age check 'Challenge 25' policy. A record of their training, including the dates that each member of staff is trained, shall be available for inspection at the premises on request by the Council's authorised officers or the Police.

4AC - Age check or 'Challenge 25' signage shall be displayed at entrances to the premises, areas where alcohol is displayed for sale and at points of sale to inform customers that an age check 'Challenge 25' policy applies and proof of age may be required.

4AI - A register of refused sales of alcohol shall be maintained in order to demonstrate effective operation of the policy. The register shall be available for inspection at the premises on request by Council authorised officers or the Police.

I attach electronic documents of training materials and a refusals register which can be used to meet the above conditions in terms of staff training and use of a refusal register. This effectively saves the business the cost of paying a consultant to undertake such activities. There is no reason why a person in the business who holds a personal license cannot undertake such training for staff and this can form part of a defence for the business should a member of staff supply alcohol to a minor.

If you are happy to accept these conditions then trading standards, as a responsible authority, will be happy to lift the representations made in respect of the application.

Hard copies of the above documents can be provided on request.

Kind regards

Yemisi Forrest

Pronouns: She/Her

Principal Enforcement Officer – Trading Standards

Southwark Council | Environment, Sustainability & Leisure (ES&L) | Regulatory Services

T: 020 7525 5739

From:

Sent: Tuesday, November 25, 2025 4:23 PM

To: Forrest, Yemisi

Cc: Regen, Licensing ; Jerrom, Charlie ; Tear, Jayne

Subject: Re: New Premises Application, Flav'r Street Food and Bar, Arch 37 America Street, London SE1 0NJ - Ref:887519

Dear Yemisi,

Thank you for your correspondence regarding the premises licence application for Arch 37, America Street, London SE1 0NJ.

On behalf of America Street Ltd t/a Flavr Street Food and Bar, I confirm that we accept the conditions proposed by Trading Standards in relation to the protection of children from harm, specifically:

- Condition 4AA – Operation of a Challenge 25 age-verification policy.
- Condition 4AB – Staff training in Challenge 25, with training records maintained and made available for inspection.
- Condition 4AC – Display of Challenge 25 signage at the entrance, alcohol display areas and points of sale.
- Condition 4AI – Maintenance of a refusals register available for inspection.

We will implement these measures in full and utilise the provided training materials and refusals register to ensure compliance.

We therefore request that Trading Standards withdraw their representations in respect of this application.

Kind Regards,

From: Forrest, Yemisi

Sent: Wednesday, November 26, 2025 8:35 AM

To:

Cc: Regen, Licensing <Licensing.Regen@southwark.gov.uk>; Jerrom, Charlie Tear, Jayne

Subject: RE: New Premises Application, Flavr Street Food and Bar, Arch 37 America Street, London SE1 0NJ - Ref:887519

Good morning,

Thank you for your email, Trading Standards as a responsible authority now withdraw their representations on the basis of the email below.

Kind regards

Yemisi Forrest

Pronouns: She/Her

Principal Enforcement Officer – Trading Standards

Lead Officer - Scams and Rogue Trading

Southwark Council | Environment, Sustainability & Leisure (ES&L) | Regulatory Services

T:

Postal Address:

Trading Standards Unit | 3rd Floor, Hub 1 | PO Box 64529 | London | SE1P 5LX

The licensing Unit
Floor 3
160 Tooley Street
London
SE1 2QH

Metropolitan Police Service
Licensing Office
Southwark Police station
323 Borough High Street
London
SE1 1JL
Tel:
Email:
Your ref: 2494730
Our ref: MD/25/1949
21/11/2025

Re: Flavr Street Food and Bar ARCH 37 AMERICA STREET, LONDON SE1 0NJ

Dear Sir/Madam,

Police are in possession of a new premises licence application from the above premise. The premises is a food hall with occasional live DJ performances, televised sports and other entertainment such as quizzes and bingo. The Hours on Thursday, Friday and Saturday requested exceed those suggested by the Southwark Council Licensing policy which are close time Sunday to Thursday is 23:00 hours and for Friday and Saturday 00:00 hours The hours requested in this application are as follows.

Timings of recorded music

Mon – Wed 1600hrs – 2300hrs
Thurs – Fri – 1600hrs – 0100hrs
Sat – 1200hrs – 0100hrs
Sun – 1200hrs – 2300hrs

Standard days and timings for Anything of a similar description

Mon – Wed 1600hrs – 2300hrs
Thurs – Fri – 1600hrs – 0100hrs
Sat – 1200hrs – 0100hrs
Sun – 1200hrs – 2300hrs

Late night refreshments

Thurs – Sat 2300hrs – 0100hrs

Supply of alcohol

Sun – Wed 1100hrs – 2300hrs
Thurs – Sat 1100hrs – 0100hrs

Open to the public

Sun – Wed 1100hrs – 2300hrs
Thurs – Sat 1100hrs – 0100hrs

The premises is situated in Bankside, Borough, London Bridge Strategic Cultural & Bankside and Borough District Town Centre and is located in a Cumulative Impact Area (CIZ) as designated by Southwark Council. The High Court approval of Cumulative impact policies came in Westminster City Council v Middlesex Crown Court. In brief, it stated 'A licence could be refused on the sole ground that the area was already saturated with licensed premises'

There are also concerns that the Hours on Thursday, Friday and Saturday requested exceed those suggested by the Southwark Council Licensing policy and we ask the applicant to reconsider.

The applicant has provided some control measures to address the licensing objectives, but police believe that there are additional conditions that would be beneficial to the premise licence.

1. That a digital CCTV system shall be installed at the premises, shall be maintained in full working order and shall be continually recording at all times that the premises are in use. The CCTV system must be capable of capturing a clear facial image of every person who enters the premises in all lighting conditions. The CCTV system shall be correctly time and date stamped at all times. The CCTV system shall cover all interior and exterior areas of the premises, including the frontage of the premises, and shall collect clear high definition footage. All CCTV footage shall be kept for a period of thirty one (31) days and shall be made immediately available to Police and council officers.
2. At least one member of staff should be on duty the premises is open or contactable via the telephone, that is trained in the use of the CCTV and able to view and download images to a removable device on request of police or council officers.
3. That all CCTV footage shall be kept for a period of thirty one (31) days and shall be made immediately available to Police and authorised council officers.
4. That clearly legible signage shall be prominently displayed where it can easily be seen and read by customers advising to the effect that CCTV is in operation at the premises. The signage shall be kept free from obstructions at all times.
5. That an incident log shall be kept at the premises to record details of any of the following occurrences at the premises:
 - I. Instances of anti-social or disorderly behaviour
 - II. Calls to the police or other emergency services
 - III. Any complaints received
 - IV. Ejections of people from the premises
 - V. Visits to the premises by the local authority or emergency services
 - VI. Any malfunction in respect of the CCTV system
 - VII. All crimes reported by customers, or observed by staff
 - VIII. Any other relevant incidents

The incident log shall record the time, date, location in the premises and description of each incident, details of any action taken in respect of the incident and the printed name of the person reporting the incident and. The incident log shall be available / be accessible at the premises at all times that the premises are in use, and shall be made immediately available to responsible authority officers on request. Details of incidents shall be recorded contemporaneously. If the incident log is a paper hardcopy then the signature of the person reporting the incident in the log shall also be included. All relevant staff employed at the premises shall be trained in the use of the incident log. Details of such training, including the printed name(s) of the trainee(s) and the date(s) that the training was given, shall be recorded in the staff training logs at the premises. That all Digital records of training and/or logs shall be made immediately available to Police and authorised officers.

6. The venue shall support "Ask for Angela" or another similar safety initiative Posters relating to Ask for Angela, or any other similar safety initiative in place, shall be displayed at the premises (including the toilets). Such posters shall be kept free from obstructions at all times. All staff shall be trained in "Ask Angela", or a similar safety initiative, and a record of this training shall be kept

on the premises and made available for inspection immediately to Police and authorised council officers upon request.

7. The premises must have a welfare and vulnerability policy. The policy shall include but not be limited to the following:
 - A clear policy on how to prevent drinks spiking
 - How customers alleging such are cared for and reported to police.

All new staff must receive this training before starting their role and all staff must have refresher training every 12 months. All training must be recorded and these records must be available on immediate request by police and council officers upon request.

8. That the sale of alcohol shall cease at least 30 minutes before the premises' closing time, as stated elsewhere in this licence, on each day.
9. That alcohol shall not be sold or supplied on the premises otherwise than to persons taking table meals there, and for consumption by such persons as ancillary to their meal. There shall be no designated vertical drinking area.
10. That a dispersal policy to assist with patrons leaving the premises in an orderly and safe manner shall be devised and maintained regarding the premises. A copy of the dispersal policy shall be accessible at the premises at all times that the premises are in operation. The policy should include (but not necessarily be limited to) the following:
 - a. Details as to how customer / staff egress at the premises shall be managed to minimise causing nuisance.
 - b. Details of public transport in the vicinity and how customers will be advised in respect of it.
 - c. Details of the management of taxis to and from the premises.
 - d. Details of the management of any 'winding down' period at the premises.
 - e. Details of the use of security and stewarding in respect of managing customer dispersal from the premises.
 - f. Details of any cloakroom facility at the premises and how it is managed.
 - g. Details of road safety in respect of customers leaving the premises.
 - h. Details of the management of ejections from the premises.
 - i. Details as to how any physical altercations at the premises are to be managed
 - j. Details of how refuse / waste in the local vicinity arising through the operation of the premises will be cleared up (e.g. flyer clean up, post event clean up).
11. All relevant staff employed at the premises shall be trained in the latest version of the dispersal policy. Details of such training, including the printed name(s) of the trainee(s) and the date(s) that the training was given, shall be recorded in the staff training logs at the premises. If the dispersal policy is a paper document, then the signature of the trainees shall also be included. The dispersal policy shall be made immediately available to Police and council officers on request.
12. The premises licence holder or DPS shall make a daily risk assessment for the requirement for SIA registered door supervisors and be responsible for implementation of requirements following from those risk assessments. A copy of the written risk assessments will be made immediately available to Police and authorised council officers on request.
13. When SIA door supervisors are employed, the following conditions shall apply:
 - The premises licence holder or DPS (or nominated deputy) shall ensure that the following details for each door supervisor, are contemporaneously entered into a bound or electronic register kept for that purpose:

- Full name,
 - SIA Certificate number and or badge number, or registration number of any accreditation scheme recognised by the Licensing Authority (including expiry date of that registration or accreditation),
 - The time they began their duty
 - The time they completed their duty.
14. When employed the SIA registered door supervisors shall be equipped with recording body worn video for all events. The body worn video shall be made available upon request to Police and authorised council officers on request. That any instances of body worn cameras not functioning, not turned on or missing shall be recorded by the Manager/Staff in a security log book for reference with a reason for failure. This log is to be made immediately available for inspection to Police and authorised council officers.
15. There shall be no dedicated dance floor within the venue
16. The capacity of the venue shall not exceed 100 people

Police object to the granting of this licence as the hours exceed the recommended policy hours and there are minimum control measures offered to address this. Police welcome the opportunity to open dialogue with applicant to progress this application.

Yours faithfully,

**PC SADIE DUNNE
LICENSING OFFICER
METROPOLITAN POLICE - SOUTHWARK**

From:

Sent: 10 December 2025 11:56

To: Dunne Sadie C - AS-CU

Subject: Re: Flavr Street Food & Bar – Response to Police Representation (Ref: 2494730)

Flavr Street Food & Bar – Confirmation of Agreement to Hours & Conditions (Ref: 2494730)

Dear PC Dunne,

Thank you for your email and for the constructive engagement throughout this process. On behalf of my client, America Street Ltd, I can confirm that we are happy with the amended hours and the full set of conditions as outlined in your message below.

We appreciate the Police's willingness to consider our operational model and to remove the two conditions that would have been unworkable in the food hall format. The revised wording regarding SIA staffing, together with the CCTV, incident log, dispersal policy and welfare measures, provides a robust and proportionate framework that fully supports the licensing objectives.

Please accept this email as confirmation that my client and I agree to the proposed timings and conditions in full.

We are grateful for your cooperation and look forward to continuing a positive working relationship with the Metropolitan Police.

Kind regards

From:

Sent: Wednesday, December 10, 2025 1:08 PM

To: Regen, Licensing

Cc:

Subject: FW: Flavr Street Food & Bar – Response to Police Representation (Ref: 2494730)

Good afternoon,

In light of the police and the applicant agreeing on the below times and conditions, I would like to withdraw my representation for **Flavr Street Food and Bar ARCH 37 AMERICA STREET, LONDON SE1 0NJ**

Timings of recorded music

Mon – Wed 1600hrs – 2300hrs

Thurs – Fri – 1600hrs – 0000hrs

Sat – 1200hrs – 0000hrs

Sun – 1200hrs – 2300hrs

Standard days and timings for Anything of a similar description

Mon – Wed 1600hrs – 2300hrs

Thurs – Fri – 1600hrs – 0000hrs

Sat – 1200hrs – 0000hrs

Sun – 1200hrs – 2300hrs

Late night refreshments

Thurs – Sat 2300hrs – 0000hrs

Supply of alcohol

Sun – Wed 1100hrs – 2230hrs

Thurs – Sat 1100hrs – 2330hrs

Open to the public

Sun – Wed 1100hrs – 2300hrs

Thurs – Sat 1100hrs – 0000hrs

1. That a digital CCTV system shall be installed at the premises, shall be maintained in full working order and shall be continually recording at all times that the premises are in use. The CCTV system must be capable of capturing a clear facial image of every person who enters the premises in all lighting conditions. The CCTV system shall be correctly time and date stamped at all times. The CCTV system shall cover all interior and exterior areas of the premises, including the frontage of the premises, and shall collect clear high definition footage. All CCTV footage shall be kept for a period of thirty one (31) days and shall be made immediately available to Police and council officers.
2. At least one member of staff should be on duty the premises is open or contactable via the telephone, that is trained in the use of the CCTV and able to view and download images to a removable device on request of police or council officers.
3. That all CCTV footage shall be kept for a period of thirty one (31) days and shall be made immediately available to Police and authorised council officers.
4. That clearly legible signage shall be prominently displayed where it can easily be seen and read by customers advising to the effect that CCTV is in operation at the premises. The signage shall be kept free from obstructions at all times.
5. That an incident log shall be kept at the premises to record details of any of the following occurrences at the premises:
 - I. Instances of anti-social or disorderly behaviour
 - II. Calls to the police or other emergency services

- III. Any complaints received
- IV. Ejections of people from the premises
- V. Visits to the premises by the local authority or emergency services
- VI. Any malfunction in respect of the CCTV system
- VII. All crimes reported by customers, or observed by staff
- VIII. Any other relevant incidents

The incident log shall record the time, date, location in the premises and description of each incident, details of any action taken in respect of the incident and the printed name of the person reporting the incident and. The incident log shall be available / be accessible at the premises at all times that the premises are in use, and shall be made immediately available to responsible authority officers on request. Details of incidents shall be recorded contemporaneously. If the incident log is a paper hardcopy then the signature of the person reporting the incident in the log shall also be included. All relevant staff employed at the premises shall be trained in the use of the incident log. Details of such training, including the printed name(s) of the trainee(s) and the date(s) that the training was given, shall be recorded in the staff training logs at the premises. That all Digital records of training and/or logs shall be made immediately available to Police and authorised officers.

6. The venue shall support "Ask for Angela" or another similar safety initiative Posters relating to Ask for Angela, or any other similar safety initiative in place, shall be displayed at the premises (including the toilets). Such posters shall be kept free from obstructions at all times. All staff shall be trained in "Ask Angela", or a similar safety initiative, and a record of this training shall be kept on the premises and made available for inspection immediately to Police and authorised council officers upon request.
7. The premises must have a welfare and vulnerability policy. The policy shall include but not be limited to the following:
 - A clear policy on how to prevent drinks spiking
 - How customers alleging such are cared for and reported to police.

All new staff must receive this training before starting their role and all staff must have refresher training every 12 months. All training must be recorded and these records must be available on immediate request by police and council officers upon request.

8. That the sale of alcohol shall cease at least 30 minutes before the premises' closing time, as stated elsewhere in this licence, on each day.
9. That a dispersal policy to assist with patrons leaving the premises in an orderly and safe manner shall be devised and maintained regarding the premises. A copy of the dispersal policy shall be accessible at the premises at all times that

the premises are in operation. The policy should include (but not necessarily be limited to) the following:

- a. Details as to how customer / staff egress at the premises shall be managed to minimise causing nuisance.
 - b. Details of public transport in the vicinity and how customers will be advised in respect of it.
 - c. Details of the management of taxis to and from the premises.
 - d. Details of the management of any 'winding down' period at the premises.
 - e. Details of the use of security and stewarding in respect of managing customer dispersal from the premises.
 - f. Details of any cloakroom facility at the premises and how it is managed.
 - g. Details of road safety in respect of customers leaving the premises.
 - h. Details of the management of ejections from the premises.
 - i. Details as to how any physical altercations at the premises are to be managed
 - j. Details of how refuse / waste in the local vicinity arising through the operation of the premises will be cleared up (e.g. flyer clean up, post event clean up).
10. All relevant staff employed at the premises shall be trained in the latest version of the dispersal policy. Details of such training, including the printed name(s) of the trainee(s) and the date(s) that the training was given, shall be recorded in the staff training logs at the premises. If the dispersal policy is a paper document, then the signature of the trainees shall also be included. The dispersal policy shall be made immediately available to Police and council officers on request.
11. The premises licence holder or DPS shall make a daily risk assessment for the requirement for SIA registered door supervisors and be responsible for implementation of requirements following from those risk assessments. A copy of the written risk assessments will be made immediately available to Police and authorised council officers on request.
12. SIA door supervisors to be required only:
 - (1) following a daily written risk assessment;
 - (2) on Friday or Saturday nights if deemed necessary;
 - (3) at all pre-planned ticketed or large pre-booked events.
13. When SIA door supervisors are employed, the following conditions shall apply:
 - The premises licence holder or DPS (or nominated deputy) shall ensure that the following details for each door supervisor, are contemporaneously entered into a bound or electronic register kept for that purpose:
 - Full name,
 - SIA Certificate number and or badge number, or registration number of any accreditation scheme recognised by the Licensing Authority (including expiry date of that registration or accreditation),

- The time they began their duty
- The time they completed their duty.

14. There shall be no dedicated dance floor within the venue

15. The capacity of the venue shall not exceed 100 people

Kind regards
Sadie



PC Sadie Dunne

Licensing Team

Address – Southwark Police Station

Metropolitan Police

Unless otherwise stated this email is GSC Code – Official

From: Prickett, Mark <Mark.Prickett@southwark.gov.uk>
Sent: Thursday, December 18, 2025 3:21 PM
To: Regen, Licensing <Licensing.Regen@southwark.gov.uk>
Subject: EPT objections - -premises licence , Arch 37 America Street, SE1

Dear Licensing,

Southwark's Environmental Protection Team (EPT) have reviewed the new premises licence at Arch 37, America Street, SE1 0NJ.

The application describes the new premises as *"The premises is a food hall and bar situated within one of the railway arches on America Street. The immediate area is predominantly commercial, with little to no residential property nearby, which significantly reduces the potential for noise or public nuisance. The venue is located within an established hospitality zone and forms part of the wider Bankside development. Its close proximity to Flat Iron Square and the adjoining arches—many of which already accommodate restaurants and licensed premises—means the proposed operation will be compatible with the existing character and late-evening activity of the locality. In addition to supporting the local night-time economy, the food hall will also provide a high-quality and affordable lunchtime option for the large number of office workers based in the surrounding area, contributing positively to both daytime and evening use of the site."*

The application seeks the following licensable activities:

- (f) Recorded music (indoors): 16:00 – 23:00 Monday to Wednesday, 16:00 – 01:00 Thursday & Friday, 12:00 – 01:00 Saturday and 12:00 – 23:00 Sunday.
"The premises will provide background music to enhance the customer experience. This may include pre-recorded music played through speakers and occasional live DJ performances. All live music will be low-level, primarily background, and managed to ensure there is no disturbance to neighbouring premises. Live music performances will not exceed 200 people before 23:00, in line with the Licensing Act 2003 exemptions. After 23:00, live music will be included within the licensable activities of the premises."
- Anything similar to (f) (indoors): 16:00 – 23:00 Monday to Wednesday, 16:00 – 01:00 Thursday & Friday, 12:00 – 01:00 Saturday and 12:00 – 23:00 Sunday.
"The premises will provide background music to enhance the customer experience, including pre-recorded music through speakers and occasional live DJ performances. Televised sports may also be shown. There may also be other entertainment such as quizzes and bingo, and similar events as and when they become available. All entertainment will be low-level, primarily background, and managed to ensure there is no disturbance to neighbouring premises. No indoor sporting events or films will be provided as regulated entertainment."

The premises is a food hall and bar located within one of the railway arches on America Street. The immediate area is predominantly commercial, with little to no residential property nearby, which significantly reduces the potential for noise or public nuisance. The venue is situated within an established hospitality zone and forms part of the wider Bankside development. Its close proximity to Flat Iron Square and the adjoining arches—many of which already accommodate restaurants and licensed premises—means the proposed operation will be compatible with the existing character and late-evening activity of the locality.

The premises will provide background music to enhance the customer experience, including pre-recorded music through speakers and occasional live DJ performances. Televised sports may also be shown. There may also be other entertainment such as quizzes and bingo, and similar events as and when they become available. All entertainment will be low-level, primarily background, and managed to ensure there is no disturbance to neighbouring premises. No indoor sporting events or films will be provided as regulated entertainment.

In addition to supporting the local night-time economy, the food hall will provide affordable and enjoyable lunchtime options for nearby office workers, contributing positively to both daytime and evening use of the site.”

- Late night refreshment (indoors): 23:00 – 01:00 Thursday to Saturday. *“Late-night refreshment (hot food and hot drinks) will be available from 23:00 to 01:00 on Thursdays, Fridays, and Saturdays in conjunction with alcohol service. All service will be managed to prevent disturbance to neighbouring premises and in compliance with Southwark Council’s licensing objectives.”*
- Supply of alcohol (on the premises): 11:00 – 23:00 Sunday to Wednesday, 11:00 – 01:00 Thursday, Friday & Saturday.
- Opening hours: 11:00 – 23:00 Sunday to Wednesday, 11:00 – 01:00 Thursday, Friday & Saturday.

Section M, part d) of the application has been reviewed, and the measures proposed to address the prevention of public nuisance licensing objective are as follows: *“Music levels, including DJ performances, recorded music, and televised sports, will be managed to prevent disturbance to neighbouring properties. External areas, if any, will be monitored and cleaned regularly, and patrons will be encouraged to leave quietly.”*

Planning permission

The relevant planning permission for the arch is under the following application:

23/AP/0561 - *Change of use of Arch 36 (Car Wash Use Class E(g) and Arch 37 (Production studio Use Class E(c)), Arch 38 and Arch 39 (Car park Sui Generis) to flexible uses under Use Class E (a), (b), (c), (d),(g) (ii) and (g) (iii) and/or Drinking Establishment (Sui Generis); installation of shopfronts, creation of cycle and bin*

storage, demolition of external lean to structures to front, side and rear and the installation of substation.

<https://planning.southwark.gov.uk/online-applications/applicationDetails.do?activeTab=summary&keyVal=RQUMMSKBLV600>

The decision notice is attached for reference.

Condition 15 restricts opening times for the arch as follows:

15. *The use hereby permitted for the development hereby approved; purposes shall not be carried on outside of the hours of:*

- 8:00 - 23:00 on Monday to Fridays;
- 8:00 - 23:00 on Saturdays and;
- 8:00 - 23:00 on Sundays and Bank Holidays.

Reason:

To safeguard the amenities of neighbouring residential properties in accordance with Chapter 8 (Promoting healthy and safe communities) of the National Planning Policy Framework (2021); Policy D4 (Delivering good design) of the London Plan (2021); and Policy P56 (Protection of amenity) of the Southwark Plan (2022).

EPT stance

The description of the premises states “*with little to no residential property nearby, which significantly reduces the potential for noise or public nuisance*”. This is factually incorrect as there are numerous residential properties to the north of America Street that overlook the premises.

Section M, part d) of the application is not considered to contain adequate controls to fully address the prevention of public nuisance licensing objective considering the licensable activities and times being applied for. A worst case scenario would be a DJ led event within the arch until 1am in the morning, with very little detail provided on how this will be controlled to prevent public nuisance to the numerous existing residential properties approx. 10m from the front arch entrance.

Furthermore, the application also references external areas, however it doesn't appear these are shown on the plan. Can this please be confirmed, as well as any proposed controls on smokers and dispersal of guests.

The proposal is to offer late night refreshment. There are 8 food stalls proposed within the arch. There are currently no details provided on how arch ventilation / food preparation cooking odours & grease will be controlled to ensure there will be no public nuisance caused by this.

As referred to above, Arch 39 is only permitted to operate until 23:00 on all days as per the relevant planning application. Southwark's Statement of Licensing Policy 2021-2026

details the relationship with the planning regime within section 100-104 on page 28, notably "this Authority will look to ensure proper integration with the planning regime... it is strongly recommended that applications for premises licences for permanent commercial premises should normally be from businesses with relevant planning consent for the property concerned". "the Council may expect the Applicant to address the reasons why planning permission had not been firstly sought and / or granted and provide reasons as to why licensing consent should be."

EPT raise objection to this application as there are concerns of public nuisance occurring to existing residential neighbours if this application was granted. EPT would request the operating times proposed to be in line with existing restrictions and for more site-specific details proposed to address public nuisance before reconsidering this application.

Kind regards,

Mark Prickett

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